



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP
Subject: PUDC-23-163 Assigned Zoning County Pocket #2 Annexation
Date: November 13, 2023

Background:

The item for consideration is a *Zone Change*. This is approved by ordinance. This zoning map amendment is City-initiated in conjunction with a City-initiated annexation under Wyo. Stat. § 15-1-404. Because this is a City-initiated annexation, the City must establish City Zone Districts. The area to be annexed and zoned is comprised of 51 parcels. Of those parcels, 26 appear to be primarily developed with residential uses and one solely as a business use.

The proposed Governing Body review schedule is as follows:

- Introduction and referral: November 13, 2023
- Public Services Committee: November 21, 2023
- Second Reading: November 27, 2023
- Public Services Committee: December 5, 2023
- Third and Final Reading: December 11, 2023

On July 10, 2023, the Governing Body approved Ordinance No. 4516 creating UDC Section 2.2.8, Assigned Zoning, to provide review standards and procedures for zoning districts established on land or property currently without a City zone assignment. Establishment of these zone districts for these areas follows the Assigned Zoning process.

Attached to this memo are the Assigned Zoning Chart, Laramie County Land Use Regulations: Chapter 2, Zone Districts, and Cheyenne Unified Development Code: Use Table 5-1 Zone Districts and Uses which detail any differences in land use between the County and City zones. Staff has highlighted text applicable to this zoning action.

The Planning Commission held a public hearing on November 6, 2023, and after hearing public comment, recommended approval of the Assigned Zoning as recommended by staff.

Attachments:

1. November 6, 2023, Planning Commission Staff Report
2. Assigned Zone Chart
3. Laramie County Land Use Regulations: Chapter 2, Zone Districts
4. Cheyenne Unified Development Code: Use Table 5-1 Zone Districts and Uses
5. Proposed Ordinance



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CITY OF CHEYENNE PLANNING COMMISSION

NOVEMBER 6, 2023

STAFF REPORT

FILE:	PUDC-23-163: County Pocket #2 Annexation – Establishment of Zoning
REQUEST:	City-initiated rezoning of various properties from County A1, County LR, County MU, County MR, and County CB to City AG, City LR, City MR, City MUR, and City CB concurrent with a City-initiated annexation
LOCATION:	51 parcels within nine County pockets generally located north of Dell Range Boulevard and west of Powderhouse Road.
APPLICANT:	City of Cheyenne
OWNER:	Various owners
ZONING:	County A1, County LR, County MU, County MR
FUTURE LAND USE:	Urban Residential, Mixed Use Commercial, and Parks and Open Space
PURPOSE:	To establish a City zoning district concurrent with annexation
PREPARED BY:	Charles Bloom, AICP, Planning and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the establishment of City zones associated with the County Pockets #2 annexation as follows: All County A1 Agricultural and Rural Residential zoned areas be zoned AG Agriculture, all County LR Low Density Residential zoned areas be zoned LR Low Density Residential, all County MR Medium Density Residential zoned areas be zoned MR Medium Density Residential, all County CB Community Business zoned areas be zoned CB Community Business, and all County MU Mixed Use zoned areas be zoned MUR Mixed-use Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning
- City Council 2022 Goal: Annexation of County Pockets

BACKGROUND:

This zoning map amendment is City-initiated in conjunction with a City-initiated annexation under Wyo. Stat. § 15-1-404. City zoning districts are established in conjunction with annexation typically to support a proposed development. Because this is a City-initiated annexation, the City must establish City Zone Districts. The area to be annexed and zoned is comprised of 51 parcels. Of those parcels, 26 appear to be primarily developed with residential uses and one solely as a business use.

On July 10, 2023, the Governing Body approved Ordinance No. 4516 creating UDC Section 2.2.8, Assigned Zoning, to provide review standards and procedures for zoning districts established on land or property currently without a City zone assignment. Concurrent with the adoption of the Assigned Zoning process, staff created a policy document indicating what the corollary city zone would be to the underlying county zone.

The procedures for assigned zoning are similar to that of a zoning map amendment. Posted notice is required and notice is mailed to property owners within the area to be zoned and within 300' of those areas. The primary difference with Assigned Zoning is that only one review criteria exists and that criteria is detailed in the analysis section below.

Question-and-Answer Session:

A question-and-answer session was held on October 8, 2023. Only property owners within the annexation area were invited. Seventeen people attended. Discussion, comments, and questions primarily surrounded the annexation component, but the topics of zoning, nonconforming uses, livestock, and animals did occur. During the meeting staff provided information regarding assigned zoning and learned that some non-residential accessory uses and home-based businesses existed within the area including an animal boarding, auction house, warehousing, and shipping and receiving operations were occurring.

Nonconforming Uses:

Any non-conforming uses will be subject to the nonconforming use provisions of the Unified Development Code (UDC § 1.3.6). In the event a nonconforming use wishes to change, expand, or intensify approvals may be granted by the Board of Adjustment through Conditional Use approval pursuant to UDC § 1.3.6.c.1. Furthermore, pursuant to Wyo. Stat. § 15-1-410(a) the City

“(a) The territory and inhabitants of any annexed area are subject to all the laws, ordinances, rules and regulations of the city or town to which they are annexed and are entitled to all the rights, privileges and franchises or other services afforded the inhabitants thereof. The services shall be provided in accordance with the timetable provided pursuant to W.S. 15-1-402(c)(iii). Notwithstanding any other provision of law, no law, ordinance, rule or regulation of a municipality annexing property under W.S. 15-1-404 shall restrict the continuous use of the property by a current or subsequent owner of an interest in the property, if the use was existing

at any time within the year prior to the date of annexation and was lawful at the time the property was annexed. For purposes of this subsection, a use which has been discontinued for any one (1) year period after the date of annexation shall not be considered continuous and shall not thereafter be reestablished unless in conformance with current law, ordinance, rule or regulation.”

Staff reached out to the County Planning and Development Department, and they have not expressed concern with any land uses in the areas to be zoned. The City will accept these areas “as-is” and the existing uses will be grandfathered in. Property owners may voluntarily complete the Land Use Documentation Form on the City’s annexation website to provide information regarding the use of their land. To date, staff has received several of these forms.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The Assigned Zoning policy document is shown below.

Assigned Zone Chart	
Underlying County Zone	Analogous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

Establishment of the City zones matches the policy document; therefore, the item **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

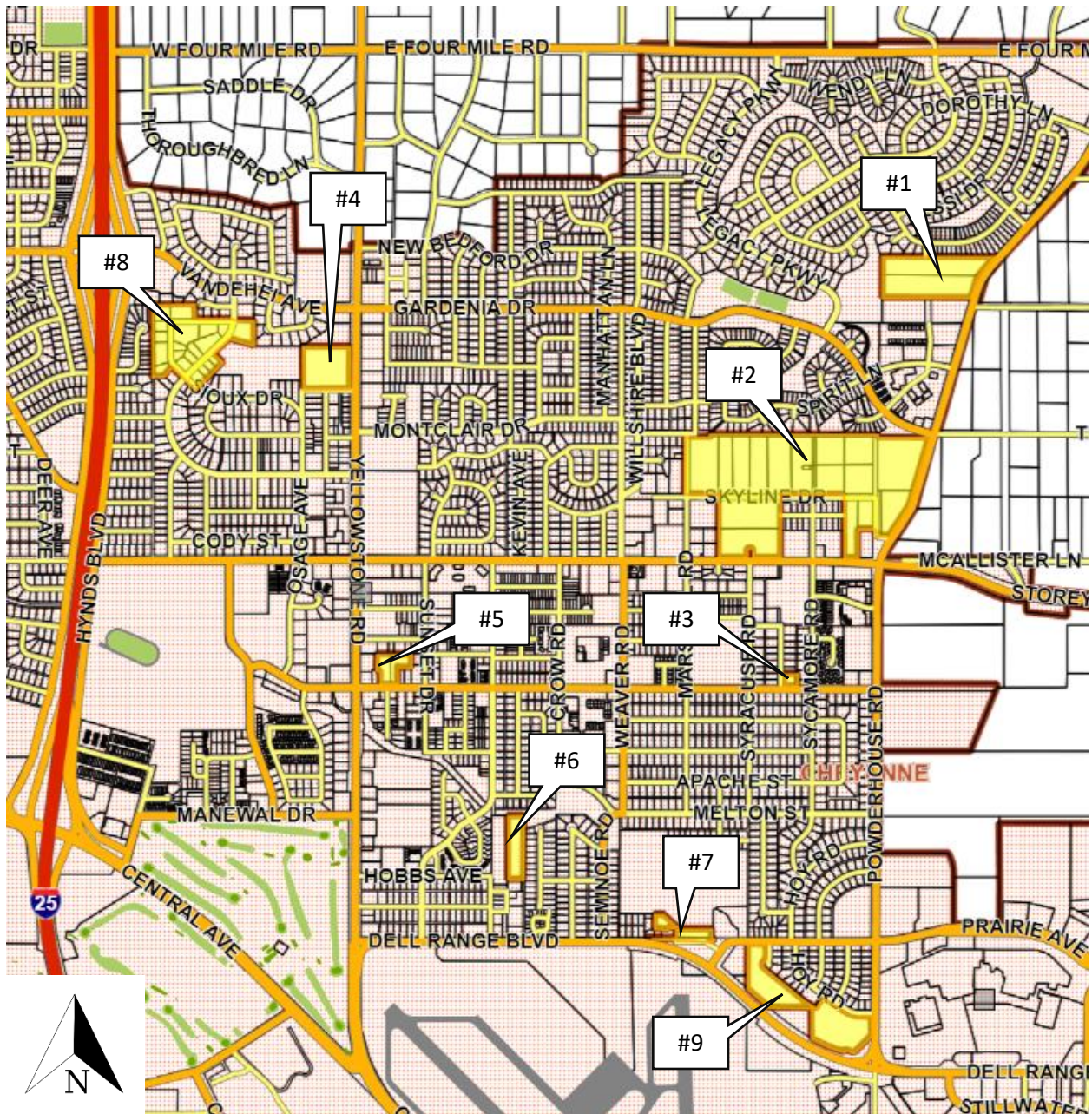
If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

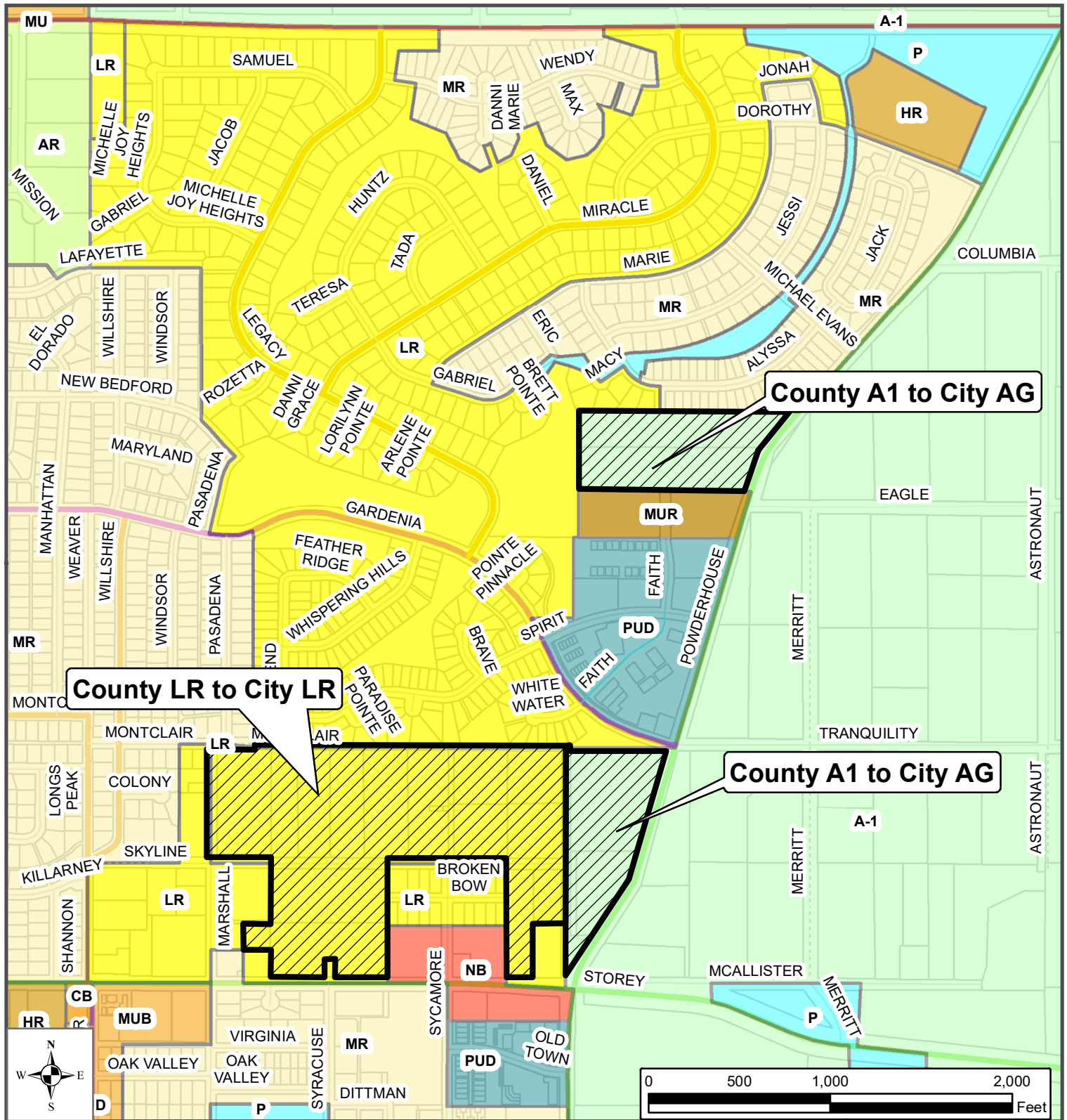
Staff recommends approval approve the establishment of City zones associated with the County Pockets #2 annexation as follows: All County A1 Agricultural and Rural Residential zoned areas be zoned AG Agriculture, all County LR Low Density Residential zoned areas be zoned LR Low Density Residential, all County MR Medium Density Residential zoned areas be zoned MR Medium Density Residential, all County CB Community Business zoned areas be zoned CB Community Business, and all County MU Mixed Use zoned areas be zoned MUR Mixed-use Residential as shown in the attached zone change map.

ATTACHMENTS:

1. County Pockets #2 Map
2. Zone Change Maps



County Pocket #2 Map

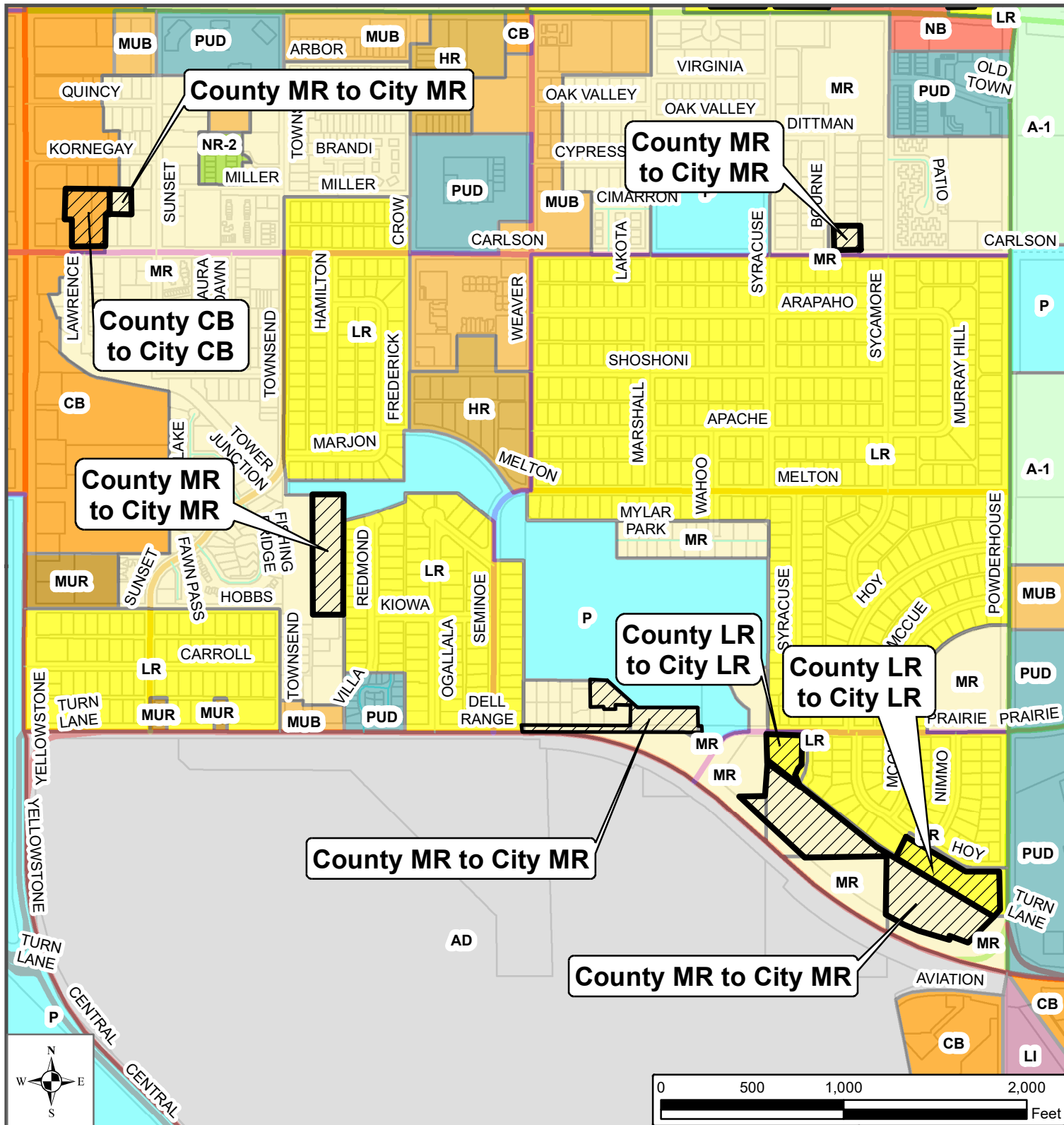


Pockets 1 & 2 Zone Change Map

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Legend

	City Limits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

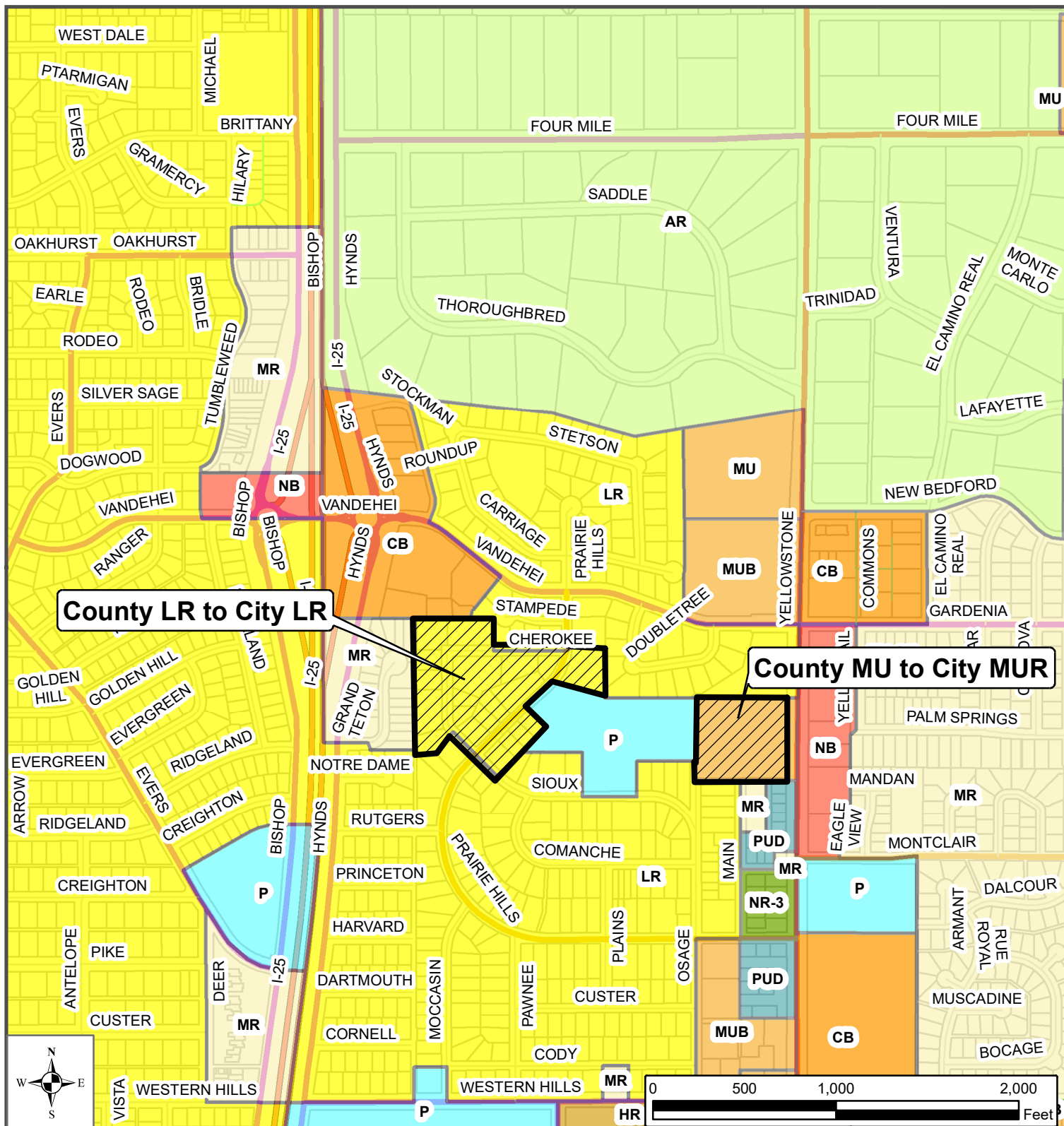


Pockets 3, 5, 6, 7, 8 Zone Change Map

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Legend

City Limits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Pockets 4 & 8 Zone Change Map

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City of Cheyenne

Planning and Development Department
2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001
www.cheyennecity.org/PlanningAndDevelopment

Assigned Zone Chart

Underlying County Zone	Analagous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
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CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

The Laramie County Land Use Regulations

CHAPTER 2 ZONE DISTRICTS

4-2-100 DISTRICT AR - AGRICULTURAL RESIDENTIAL

Areas primarily used for large lot detached residential development at a density which typifies a rural lifestyle, and which may include some agricultural uses, are considered agricultural residential.

- a. Uses by Right
 - i. Accessory structures
 - ii. Family child care home
 - iii. Home occupations
 - iv. Single-family residential
 - v. Family child care centers
 - vi. Bed and breakfasts
 - vii. Churches, temples or other places of worship
 - viii. Primary and secondary schools
 - ix. Accessory living quarters
 - x. Small Wind Energy Systems (Small Wind Energy Systems setbacks shall be equal to the largest district setbacks or the total height of the system, whichever is greater.)
- b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

 - i. Animal hospitals or clinics
 - ii. Commercial stables, arenas, kennels, bird farms and show barns
 - iii. Child care centers - minor and major
 - iv. Commercial nurseries or landscaping businesses
 - v. Other uses similar to those permitted in this district

c. Density

Minimum area for any use in this district is 5 acres for small wastewater system permits, computed consistent with the following exceptions:

- i. If the property is served by an approved central water distribution system, and/or sewer collection and treatment system, the minimum residential use lot or residential use tract area in this district may be reduced subject to a review and approval from the Wyoming Department of Environmental Quality. The computation of lot or tract sizes in this exception shall not include adjacent public or private rights-of-way, easements or reservations for roadway purposes.
- ii. Lots or tracts platted and recorded with the County Clerk prior to May 5, 1987 shall be a minimum of 2.5 acres for any use in this district.

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- iii. Lots or tracts platted and recorded with the County Clerk prior to June 5, 1979 may be used as building sites for uses allowed in this district if adequate provisions can be made for water and sewer/septic.
- iv. Minimum area for water well systems – refer to Section 2-1-103 c. i. for subdivisions approved after the adoption of these regulations.
- v. Minimum acreage may be averaged with environmental health approval but shall not have an average below 5.25 acres per tract unless meeting (c)(i) above.
- vi. Setbacks
- vii. Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.
- viii. Commercial Use Site Plan Requirements
- ix. A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations. Commercial operations may cover 85% of the tract.

4-2-101 DISTRICT A1 - AGRICULTURAL AND RURAL RESIDENTIAL

Areas in a natural state or in which the growing of crops, flowers, trees, or pasture, or the production of livestock or other farming or ranching activity is practiced, are considered agricultural and rural residential.

- a. Uses by Right
 - i. Agriculture and uses incidental to an agricultural operation
 - ii. Family child care home
 - iii. Family child care centers
 - iv. Home occupations
 - v. Single-family residential
 - vi. Small Wind Energy Systems (Small Wind Energy Systems setbacks shall be equal to the largest district setbacks or the total height of the system, whichever is greater.)
 - vii. Animal hospitals or clinics
 - viii. Bed and breakfasts
 - ix. Cemeteries
 - x. Churches, temples or other places of worship
 - xi. Duplexes
 - xii. Primary and secondary Schools
 - xiii. Roadside farm stands
 - xiv. Accessory living quarters

b. Uses Requiring Board Approval

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The following uses may be permitted by the Board:

- i. Commercial sales of agricultural related products, not including fuel or petroleum products.
- ii. Work camps.
- iii. Any other similar use.
- iv. Commercial stables, arenas, kennels, bird farms and show barns.
- v. Commercial nurseries and landscaping businesses.

c. Density

- i. The minimum lot size for any use in this district is ten (10) acres. For single family uses, the density may be averaged within the subdivision/ development, provided that no lot or tract shall be less than six (6) acres gross.
- ii. The following exceptions are permissible:
- iii. Lots or tracts platted and recorded with the County Clerk prior to November 2, 1999, shall be a minimum of 5 acres.
- iv. Lots or tracts platted and recorded with the County Clerk prior to May 5, 1987, may be a minimum of 2.5 acres.
- v. Lots or tracts platted and recorded with the County Clerk prior to June 5, 1979, may be used as building sites if adequate provisions can be made for water and sewer/septic.

d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

e. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations. Commercial operations may cover 85% of the tract.

4-2-102 DISTRICT A2 - AGRICULTURAL

Areas in a natural state or in which the growing of crops, flowers, trees, or pasture, or the production of livestock, or other farming or ranching activity is practiced, are considered agricultural.

a. Uses by Right

- i. Agriculture and uses incidental to an agricultural operation
- ii. Animal hospitals or clinics
- iii. Bed and breakfasts
- iv. Cemeteries
- v. Family child care home
- vi. Family child care centers
- vii. Home occupations

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- viii. Single-family residential
- ix. Small Wind Energy Systems (Small Wind Energy Systems setbacks shall be equal to the largest district setbacks or the total height of the system, whichever is greater.)
- x. Churches, temples or other places of worship
- xi. Duplexes
- xii. Child care centers - minor
- xiii. Primary and secondary schools.
- xiv. Commercial stables, arenas, kennels, bird farms and show barns
- xv. Farm stands
- xvi. Accessory living quarters

b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

- i. Agricultural equipment or product sales
- ii. Commercial animal processing plants
- iii. Commercial feed lots
- iv. Golf courses
- v. Race tracks
- vi. Work camps
- vii. Any other similar use
- viii. Commercial nurseries and landscaping businesses

c. Density

The minimum lot size for any use in this district is twenty (20) acres.

d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

e. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations. Commercial operations may cover 85% of the tract.

4-2-103 DISTRICT LR - LOW DENSITY RESIDENTIAL

Areas which are primarily used for low density, detached residential uses.

a. Uses by Right

- i. Family child care home
- ii. Family child care center

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- iii. Home occupations
- iv. Single-family residential
- v. Duplexes and townhouses, when developed on property platted for duplexes and townhouses
- vi. Churches, temples or other places of worship
- vii. Primary and secondary schools
- viii. Accessory living quarters
- b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

 - i. Bed and breakfasts
 - ii. Group dwellings
 - iii. Manufactured housing parks
 - iv. Other uses similar to those permitted in this district
 - v. Duplexes and townhouses, to include those developed by conversion of existing structures (to include single-family residential and commercial structures) or by splitting a previously platted lot.
- c. Minimum Lot Area and Maximum Building Coverage
 - i. Minimum Lot Area -
 - (A) Single-family: 9,000 square feet per unit
 - (B) Duplex or Townhouses: 4,500 square feet per unit
 - ii. Maximum Building Coverage -
 - (A) Total building area shall not exceed 40 percent of the total property.
- d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.
- e. Height

The maximum building height shall be thirty-five (35) feet.

Parking
- f. Parking shall be provided in conformance with the parking requirements of this regulation. Parking lots of five or more spaces shall not be permitted in the required setback from any street. This does not pertain to parking for single- family or duplex units.
- g. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations

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4-2-104 DISTRICT MR - MEDIUM DENSITY RESIDENTIAL

Areas which are to be primarily developed or redeveloped for medium density residential uses.

- a. Uses by Right
 - i. Family child care homes
 - ii. Home occupations
 - iii. Single-family residential
 - iv. Duplexes and townhouses.
 - v. Family child care center
 - vi. Offices when the building area does not exceed 3,500 square feet. There shall be no outside storage of equipment and supplies related to the offices.
 - vii. Residential accessory uses
 - viii. Churches, temples or other places of worship
 - ix. Primary and secondary schools
 - x. Multi-family residential
- b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

 - i. Bed and breakfasts
 - ii. Dormitories
 - iii. Group dwellings
 - iv. Hospitals and nursing homes
 - v. Manufactured housing parks
 - vi. Offices
 - vii. Other uses similar to those permitted in this district
 - viii. Assisted living facilities
 - ix. Accessory living quarters
- c. Minimum Property Area
 - i. Single-family: 6,000 square feet per unit
 - ii. Townhouse/Duplex: 3,000 square feet per unit
 - iii. Multi-family: 2,000 square feet per unit

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The Laramie County Land Use Regulations

d. Maximum Building Coverage

Total building area shall not exceed 50 percent of the total property for nonresidential uses.

Clustered development and Best Management Practices for storm water management and open space design is encouraged. Characteristics such as shared driveways, community open space, pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway, are encouraged.

e. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

f. Height

The maximum building height shall be thirty-five (35) feet.

g. Parking

Parking lots of five or more spaces shall not be permitted in the required setback from any street. This does not pertain to parking for single-family or duplex units.

h. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

4-2-105 DISTRICT HR - HIGH DENSITY RESIDENTIAL

Areas primarily to be developed for a variety of attached and detached high density residential uses.

a. Uses by Right

- i. Single-family residential
- ii. Family child care homes
- iii. Home occupations
- iv. Duplexes and townhouses.
- v. Bed and breakfasts
- vi. Churches, temples or other places of worship
- vii. Dormitories
- viii. Family child care center
- ix. Hospitals and nursing homes
- x. Offices when the building does not exceed 3,500 square feet. There shall be no outside storage of equipment and supplies related to the offices.
- xi. Primary and secondary schools
- xii. Multi-family residential

The Laramie County Land Use Regulations

b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

- i. Group dwellings
- ii. Child care center - minor and major
- iii. Manufactured housing parks
- iv. Other uses similar to those permitted in this district
- v. Assisted living facilities
- vi. Accessory living quarters
- vii. Mixed-use residential development

c. Minimum Property Area

- i. Single-family: 5,000 square feet per unit
- ii. Townhouse/duplex: 2,000 square feet per unit
- iii. Multi-family:
 - (A) three (3) stories and less: 1,600 square feet per unit
 - (B) above three (3) stories: 1,000 square feet per unit

There shall be a minimum usable open space for multi-family buildings of 1,000 square feet per building. Board Approval is required if a portion of the open space requirement will be inside the building.

d. Maximum Building Coverage

Total building area shall not exceed 55 percent of the total property area for nonresidential uses. Clustered development and Best Management Practices for storm water management and open space design are encouraged.

Characteristics such as shared driveways, community open space, pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway are encouraged.

e. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

f. Height

The maximum building height shall be forty-five (45) feet.

g. Parking

Parking shall be provided in conformance with the parking requirements of this regulation. Parking lots of five (5) or more spaces shall not be permitted in the required setback from any street. This does not pertain to parking for single-family or duplex units.

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h. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

4-2-106 DISTRICT NB – NEIGHBORHOOD BUSINESS

Neighborhood business areas are to be primarily used for neighborhood commercial and office uses that provide goods and services to area residents.

a. Uses by Right

- i. The retail sale of goods or the provision of services as long as all sales and storage of equipment and supplies are conducted within a building.
- ii. Offices
- iii. Child care facilities
- iv. Churches, temples or other places of worship
- v. Mixed-use residential developments

b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

- i. Bars, cocktail lounges, and liquor stores
- ii. Drive-up facilities
- iii. The retail sale of goods or the provisions of services that require outside sales and storage of supplies and equipment
- iv. Other uses similar to those permitted in this district

c. Maximum Property Coverage

Total building and parking area shall not exceed 75 percent of the total property area.

d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

e. Height

Building height shall not exceed thirty-five (35) feet.

f. Site Design

All areas, including areas from right-of-way line to property line that are not covered by buildings, sidewalks, and parking area shall be landscaped.

Best Management Practices for storm water management and open space design are encouraged. Characteristics such as community open space, pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway, are encouraged.

g. Parking

Parking requirements and standards are in accordance with this regulation.

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h. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

Screening is required in conformance with site plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. Screening for outdoor storage areas shall be located behind the setback line.

4-2-107 DISTRICT CB - COMMUNITY BUSINESS

Community business areas are to be primarily used as retail centers which serve a number of neighborhoods and are located where retail stores and services predominate.

a. Uses by Right

- i. Child care facilities
- ii. Drive-up facilities
- iii. Entertainment and recreation facilities and uses
- iv. Food service facilities
- v. Hotels and motels
- vi. Offices
- vii. Retail, service and wholesale establishments, with outdoor storage.
- viii. Churches, temples or other places of worship
- ix. Any fabrication or processing use which does not emit noxious noise, smoke, odor, or dust beyond the confines of the property, does not emit pollutants to the soil and where all sales and storage of supplies and equipment are conducted within a building.
- x. Personal storage units within an existing building
- xi. Adult entertainment establishments operated in accordance with these regulations
- xii. Small Wind Energy Systems. (Setbacks shall be equal or greater to the total height of the small wind energy system.)

b. Uses Requiring Board Approval

- i. The following uses may be permitted by the Board:
- ii. Bars, cocktail lounges, and liquor stores
- iii. Storage facilities
- iv. Transportation facilities
- v. Mixed-use residential developments
- vi. Employee living quarters
- vii. Fireworks stands
- viii. Other uses similar to those permitted in this district

The Laramie County Land Use Regulations

c. Maximum Property Coverage

Total building, parking, and outdoor storage area shall not exceed 85 percent of the property area. Best Management Practices for storm water management and open space design is encouraged. Characteristics such as community open space and pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway, are encouraged.

d. Setbacks

- i. Accessory structure setbacks shall conform to Section 2-2-118 of this regulation.
- ii. All other setbacks – refer to table in Section 4-1-104.

e. Height

- i. Buildings shall be limited to seventy-five (75) feet in height.
- ii. Board Approval is required for buildings over seventy-five (75) feet in height.

f. Site Design

All areas, including areas from right-of-way line to property line that are not covered by buildings, sidewalks, and parking area, shall be landscaped.

g. Parking

Parking requirements shall be in conformance with these regulations.

h. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

Screening is required in conformance with site plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. Screening for outdoor storage areas shall be located behind the setback line.

4-2-108 DISTRICT LI - LIGHT INDUSTRIAL

Light industrial areas are to be primarily developed for environmentally controlled manufacturing or intensive employment uses and may have accessory commercial or office uses. High quality site design, including the use of Best Management Practices for storm water management and reduction in the site's carbon emissions and energy use are encouraged.

a. Uses by Right

- i. Any industrial, manufacturing, fabrication, or processing use, associated offices and accessory commercial activities which does not emit noxious noise, smoke, odor, or dust, which does not emit pollutants to the soil and is confined to a building.
- ii. Child care facilities associated with other uses permitted in the district
- iii. Recreational facilities and uses associated with other uses permitted in the district
- iv. Retail uses
- v. Storage facilities or yards
- vi. Transportation facilities

The Laramie County Land Use Regulations

vii. Warehousing

viii. Wholesale uses

ix. Office buildings

x. Educational facilities

b. Uses Requiring Board Approval

The following uses may be permitted by the Board. If any of these uses are associated with a use by right, it will be considered accessory to that use and will not require special approval.

- i. Recycling uses
- ii. Other uses similar to those permitted in this district
- iii. Pet crematory
- iv. Kennels and pet boarding

c. Maximum Building Coverage

Total building, parking, and outdoor storage area shall not exceed 85 percent of the property area.

d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

e. Height

- i. Buildings shall be limited to seventy-five (75) feet in height.
- ii. Board Approval is required for buildings over seventy-five (75) feet in height.

f. Site Design

All areas, including areas from right-of-way line to property line that are not covered by buildings, sidewalks, and parking area, shall be landscaped.

g. Parking

Parking requirements shall be in conformance with these regulations.

h. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

Screening is required in conformance with site plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. Screening for outdoor storage areas shall be located behind the setback line.

4-2-109 DISTRICT HI - HEAVY INDUSTRIAL

Heavy industrial areas are to be primarily developed for those uses which should be isolated and buffered in order to protect both the community and the land use. High quality site design, including the use of Best Management Practices in storm water management and reduction in the site's carbon emissions, are encouraged.

The Laramie County Land Use Regulations

a. Uses by Right

- i. Any industrial, manufacturing, fabrication, or processing uses, including accessory office and commercial uses, which may emit noxious noise, smoke, odor, dust or pollutants.
- ii. Child care facilities associated with other uses permitted in the district
- iii. Railroad yards and maintenance buildings
- iv. Recreational facilities and uses associated with other uses permitted in the district
- v. Storage facilities or yards
- vi. Warehousing
- vii. Wholesaling

b. Uses Requiring Board Approval

The following uses may be permitted by the Board. If any of these uses are associated with a use by right, it will be considered accessory to that use, and will not require special approval.

- i. Salvage yards or junk yards
- ii. Recycling facilities
- iii. Other uses similar to those permitted in this district

c. Maximum Building Coverage

Total building, parking, and outdoor storage area shall not exceed 90 percent of the property area.

d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

e. Height

- i. Buildings shall be limited to one hundred (100) feet in height.
- ii. Board Approval is required for buildings over one hundred (100) feet in height.

f. Site Design

All areas, including areas from right-of-way line to property line, that are not covered by buildings, sidewalks, and parking area shall be landscaped.

g. Parking

Parking requirements shall be in conformance with these regulations.

h. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

Screening is required in conformance with site plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. Screening for outdoor storage areas shall be located behind the setback line.

The Laramie County Land Use Regulations

4-2-110 DISTRICT P - PUBLIC

This district is primarily for governmental buildings and government-sponsored uses where the activities conducted are directed to providing services to the public. It includes educational facilities and recreational areas. If the property or portions of the property with this classification are sold or transferred to a nongovernmental entity, the district classification shall be changed before the property can be used.

a. Uses by Right

- i. Child care facilities associated with other uses permitted in the district
- ii. Educational facilities
- iii. Government offices
- iv. Hospitals
- v. Open space
- vi. Parks
- vii. Buildings and uses accessory to those allowed in this district, including uses such as restaurants, bars, cocktail lounges, etc.
- viii. Recreational facilities, including uses such as playing fields, tennis courts, swimming pools, golf courses, fairgrounds and model airplane or vehicle fields
- ix. Cemeteries

b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

- i. Government buildings and structures not listed above.
- ii. Race tracks
- iii. Other uses similar to those permitted in this district

c. Maximum Property Coverage

Total building, parking, and outdoor storage area shall not exceed 85 percent of the property area.

Best Management Practices for storm water management and open space design are encouraged. Characteristics such as community open space, pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway, are encouraged.

d. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation.

All other setbacks – refer to table in Section 4-1-104.

e. Height

- i. Buildings shall be limited to seventy-five (75) feet in height.
- ii. Board Approval is required for buildings over seventy-five (75) feet in height.

The Laramie County Land Use Regulations

f. Screening and Buffering

Screening or buffering is required in conformance with Site Plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. These outdoor storage areas, including the screening or buffering, shall be located behind the setback line.

g. Site Design

All areas, including areas from right-of-way line to property line that are not covered by buildings, sidewalks, and parking area, shall be landscaped.

h. Parking

Parking requirements shall be in conformance with these regulations.

i. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

4-2-111 DISTRICT MU - MIXED USE

Mixed use developing areas are to be used for a mix of residential and commercial uses. This district is intended to encourage rehabilitation and reuse of existing buildings in the established areas of the community.

a. Uses by Right

- i. Single family, townhouse, duplex residential
- ii. Mixed use residential developments
- iii. Family child care homes
- iv. Home occupations
- v. Churches, temples or other places of worship
- vi. Offices
- vii. Multi-family residential
- viii. The retail sale of goods when the use is proposed in a building and the sale and storage of equipment and supplies are conducted within the building.
- ix. Child care facilities
- x. Assisted living facilities

b. Uses Requiring Board Approval

The following uses may be permitted by the Board:

- i. Food service facilities
- ii. Bars, cocktail lounges and liquor stores
- iii. Other uses similar to those permitted in this district
- iv. Entertainment facilities
- v. Outdoor storage in association with an approved use

The Laramie County Land Use Regulations

c. Minimum Property Area

- i. Single-family: 6,000 square feet per unit
- ii. Townhouse/duplex: 3,000 square feet per unit
- iii. Multi-family: 1,860 square feet per unit

d. Maximum Building Coverage

- i. Single-family: 60 percent of property area
- ii. Townhouse and duplexes: 50 percent of property area
- iii. Multi-family building and parking area: seventy (70) percent of property area
- iv. Total building and parking areas shall not exceed seventy five (75) percent of the total property area for nonresidential uses.
- v. Best Management Practices for storm water management and open space design are encouraged. Characteristics such as community open space, pocket parks and connectivity to regional trails, including the Greater Cheyenne Greenway, are encouraged.

e. Setbacks

Accessory structure setbacks shall conform to Section 2-2-118 of this regulation. All other setbacks – refer to table in Section 4-1-104.

f. Height

- i. The maximum building height shall be thirty-five (35) feet.
- ii. Board Approval is required for buildings over thirty-five (35) feet in height.

g. Site Design

All areas, including areas from right-of-way line to property line that are not covered by buildings, sidewalks, and parking area, shall be landscaped.

h. Parking

Parking requirements shall be in conformance with these regulations.

i. Commercial Use Site Plan Requirements

A County-approved site and landscape plan shall be required in accordance with Sections 2-2-133 and 2-2-134 of these regulations.

Screening is required in conformance with site plan requirements for outdoor storage areas of items and equipment which are not for immediate use, sale or lease. Screening for outdoor storage areas shall be located behind the setback line.

4-2-112 DISTRICT PUD - PLANNED UNIT DEVELOPMENT

A planned unit development shall permit flexibility and creativity in site, building design and location in accordance with an approved plan and specific regulation which shall be written in a manner as to prevent adverse impacts and protect the public health, safety and welfare. Design excellence or the provision of outstanding public amenities shall be considered when establishing development standards. The planned unit development regulation shall be considered the zoning regulation for the property described in that regulation.

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																								
Residential Uses																								
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P			P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P			P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P			P				
Cottage Lots				C	C	C	C	P	P			P				P	P			P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C		P				
Dormitories					C	A						P				P	P			P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P		P				
Live/Work					C	P		C	A	P	P	P				P	P	P		P				
Mixed-use Dwelling										P	P	P				P	P	P		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A			P				
Urban Loft Building									C	P	C	C				C	P			P				
Manufactured housing parks		C		C	C	C														P				
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A		P				
Cemeteries	A									A	A	P	C		C	A	A	A		P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A		P				
Educational facilities											P	P			P		A	A		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A		P				
Developed Athletic Field or Stadium											C		C		C		C	C		P				
Service Uses																								
Service Business - Limited										P	P	P				A	P	P		P				
Service Business - General										C	P	P				C	C			P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P		P				
Animal Care - Kennel	P	C									P		P							P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C			P				
Child Care, In Home - Minor	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P		P				
Child Care, In Home - Major	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P		P				
Child Care, Center - Minor	A	C	A							P	P	P				C	P	P		P				
Child Care, Center - Major	C	C	C							P	P	P					P	P		P				
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P		P				

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

Overlay District - uses subject to base zoning district

P = Use permitted by right
(blank = prohibited use)

A = use permitted after administrative review

C = Use permitted after conditional discretionary review

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																								
Services Uses (cont.)																								
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	P	C	C	C		C	C		P				
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P		P				
Lodging, Hotel / Motel											P	P					P	P		P				
Medical Care, Clinic and Office										P	P	P				C	P	P		P				
Medical Care, Hospital															P			P		P				
Mini Storage					C	C					P	C	P	P		C	C	P						
Storage, Yard													C	P						P				
Employment Uses																					P			
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P		P				
Commercial Uses																								
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C		P				
Warehouse Retail (> 100K)											P	P	P				P			P				
Grocery Store <45K										P	P	P	P				P	P		P				
Supermarket > 45K											P	P	P				P	C		P				
Outdoor Sales, Limited										A	P	A				A	A	A		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C		P				
Outdoor Sales											C		C	C			C			P				
Bars and liquor stores										C	C	P			A		C	C	P	P				
Automobile Service Repair										C	P	C	P	P			C	C		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P				
Automobile Service Station - General											P	C	P	P				C		P				
Automobile Service Station – Large-scale											C		C	P						P				
Planned District - uses subject to a development plan																								
Federal Property - No City authority over uses																								
Overlay District - uses subject to base zoning district																								
Overlay District - uses subject to base zoning district																								

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																								
Commercial Uses (cont.)																								
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P				
Food Service – General (2K – 4K)										C	P	P					P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P		P				
Industrial Uses																								
Data Center										C	C	C	P	P			C	P						
Limited Industrial										A	A	P	P	P	P	A	P	P		P				
Moderate Industrial												C	P	P			C	P		P				
General Industrial													C	P						C				
Industrial														C						C				
Limited Outdoor Storage													P	P	C			A		C				
Outdoor Storage													C	P				C		C				
Impoundment Yards													P	P			C	C		C				
Salvage yards													C	C						C				
Junk yards														C						C				
Air cargo terminals																			P	C				
Aircraft sales, repair, service, storage and relating uses																			P	C				
Railroad yards and maintenance buildings													P	P						C				
Public Service Uses																								
Commercial and Public Parking Facility												P			P		P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P				
Military																			P	P				
Recycling Services											C		P	P			C	C		P				
Transportation facilities											C		P	P	P				P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P				
Agriculture Uses																								
General Agriculture	P																		P	P				
Limited Agriculture	P	P																	P	P				
Agricultural equipment or product sales	C																			P				
Commercial stables, arenas, and show barns	C	C																		P				
Nurseries, landscaping	P	P									C		P	P			C			P				
Work Camps		C																		P				

Planned District - uses subject to a development plan
 Federal Property - No City authority over uses
 Overlay District - uses subject to base zoning district
 Overlay District - uses subject to base zoning district

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATIONS OF AG AGRICULTURAL LR - LOW DENSITY RESIDENTIAL, MR - MEDIUM DENSITY RESIDENTIAL, CB - COMMUNITY BUSINESS, AND MUR - MIXED-USE RESIDENTIAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE GENERALLY LOCATED NORTH OF DELL RANGE BOULEVARD AND WEST OF POWDERHOUSE ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That City staff has petitioned Governing Body for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC") in accordance with their 2022 goal to annex County pockets.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment.

Section 3. That on November 6, 2023, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zone changes that are the subject of this ordinance, and recommended approval of said zone changes.

Section 4. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That, in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real properties described as:

A PARCEL OF LAND SITUATE IN A PORTION OF SW¹/₄ NW¹/₄, SECTION 17, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST CORNER OF ASPEN CREEK SUBDIVISION; THENCE N. 89°38' 53" W. ALONG THE NORTH LINE OF SAID ASPEN CREEK A DISTANCE OF 912.31 FEET TO THE NORTHWEST CORNER OF SAID ASPEN CREEK; THENCE N. 00°03'27" W. ALONG THE EAST LINE OF LOT 9, BLOCK 5, THE POINTE A DISTANCE OF 230.72 FEET TO A POINTE; THENCE N. 00°01'25" E. ALONG SAID EAST LINE A DISTANCE OF 203.59 FEET TO A POINT ON THE SOUTH LINE OF BLOCK 1, THE POINTE 5TH; THENCE S. 89°37'43" E. ALONG THE SOUTH LINE OF BLOCK 1 AND BLOCK 6 OF THE POINTE 5TH A DISTANCE OF 1161.07 FEET TO A POINT ON THE WEST LINE OF POWDERHOUSE ROAD;

THENCE S. 41°58'16" W. ALONG SAID WEST LINE A DISTANCE OF 266.69 FEET TO A POINT; THENCE S. 16°42'23" W. ALONG THE SAID WEST LINE A DISTANCE OF 244.42 FEET TO THE POINT OF BEGINNING. SAID PARCELS CONTAIN 9.78 ACRES MORE OR LESS; AND

PARCELS OF LAND SITUATE IN PORTIONS OF SKYLINE TRACTS, SKYLINE RIDGE SUBDIVISION AND A PARCEL OF LAND SITUATE IN THE E SW OF SECTION 17, 14 SW OF SECTION 17, 14 OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M., AND THOSE PORTIONS OF MARSHALL ROAD, SKYLINE DRIVE, BRIMMER ROAD AND MONTCLAIR DRIVE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: , BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

THE W½ AND THE N½ E½ OF TRACT 1, ALL OF TRACTS 11-16, SKYLINE TRACTS, LOTS 1-2, BLOCK 1, SKYLINE RIDGE SUBDIVISION TOGETHER WITH A PORTION OF UNPLATTED TOGETHER WITH A PORTION OF UNPLATTED A PORTION OF UNPLATTED LAND SITUATE IN THE E SW OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING 14 SW OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING 14 OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: FOLLOWS: BEGINNING AT THE SOUTHEAST CORNER OF LOT 1, BLOCK 1, THE POINTE AND A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. 16°41'44" W. ALONG THE SAID WEST LINE A DISTANCE OF 580.06 FEET TO A POINT; THENCE S. 16°39'05" W. CONTINUING ALONG THE SAID WEST LINE A DISTANCE OF 156.50 FEET TO A POINT; THENCE S. 32°53'54" W. CONTINUING ALONG THE SAID WEST LINE A DISTANCE OF 601.59 FEET TO A POINT ON THE EAST LINE OF BRIMMER ROAD; THENCE N. 00°21'06" E. ALONG THE SAID WEST LINE OF BRIMMER ROAD A DISTANCE OF 1212.32 FEET TO THE SOUTHWEST CORNER OF SAID LOT 1, BLOCK 1, THE POINTE; THENCE S. 89°48'26" E. ALONG THE SOUTH LONE OF SAID LOT 1, BLOCK 1, THE POINTE A DISTANCE OF 530.67 FEET TO THE POINT OF BEGINNING. TOGETHER WITH: THOSE PORTIONS OF MARSHALL ROAD, SKYLINE DRIVE, BRIMMER ROAD AND MONTCLAIR DRIVE LYING WITH IN THE BOUNDS OF THIS ANNEXATION BOUNDARY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 50.58 ACRES MORE OR LESS; AND

A PARCEL OF LAND SITUATE IN BLOCK 1, BOURNE SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

ALL OF LOTS 10 & 11, BLOCK 1 AND A PORTION OF A 16' ALLEY ADJACENT TO THE EAST LINES OF SAID LOTS 10 & 11 BEGINNING AT THE EASTERLY EXTENSION OF THE NORTH LINE OF SAID LOT 11

SOUTHERLY TO THE EASTERLY EXTENSION OF THE SOUTH LINE OF LOT 10.

SAID PARCELS CONTAIN 0.43 ACRES OR 18,536 SQUARE FEET MORE OR LESS; AND

A TRACT OF LAND SITUATE IN A PORTION OF NE $\frac{1}{4}$ SE $\frac{1}{4}$, SECTION 13, T. 14 N., R. 67 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE CORNER COMMON TO LOTS 9,10 AND 16, BLOCK 4, BAR X RANCH, 2ND FILING; THENCE N. 89°45'17" E. ALONG THE SOUTH LINE OF SAID LOT 16 A DISTANCE OF 493.57 FEET TO A POINT ON THE WEST LINE OF YELLOWSTONE ROAD; THENCE S. 00°14'19" E. ALONG THE SAID WEST LINE A DISTANCE OF 439.51 FEET TO A POINT NORTHEAST CORNER OF ENCLAVE AT NORTHGATE SUBDIVISION; THENCE S. 89°45'41" W. ALONG THE NORTH LINE OF SAID ENCLAVE AT NORTHGATE SUBDIVISION AND CHEYENNE NORTH 2ND FILING A DISTANCE OF 494.72 FEET TO A POINT; THENCE S. 00°05'18" E. ALONG THE EAST LINE OF SAID NORTH CHEYENNE, 2ND & 3RD FILINGS A DISTANCE OF 439.45 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 4.99 ACRES OR 217,168 SQUARE FEET MORE OR LESS; AND

A PARCEL OF LAND SITUATE IN A PORTION OF TRACT 10, STOREY ACRES, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE SOUTH LINE OF SAID TRACT 10 SAID POINT BEARS N. 90°00'00" E. A DISTANCE OF 217.60 FEET FROM THE SOUTHWEST CORNER OF SAID TRACT 10; THENCE N. 00°00' 00' E. A DISTANCE OF 150.05 FEET TO A POINT; THENCE N. 89°57'28" W. A DISTANCE OF 55.60 FEET TO A POINT; THENCE N. 00°00'00" E. A DISTANCE OF 166.70 FEET TO A POINT ON THE SOUTH LINE OF KORNEGAY HOMESITES, 2ND FILING; THENCE S. 89°59'15" E. ALONG THE SAID SOUTH LINE A DISTANCE OF 358.80 FEET TO A POINT ALSO BEING THE NORTHWEST CORNER OF MILLER ADDITION; THENCE S. 00°00'00" E. ALONG THE WEST LINE OF SAID MILLER ADDITION A DISTANCE OF 136.78 FEET TO A POINT; THENCE N. 89°59'15" W. A DISTANCE OF 140.00 FEET TO A POINT; THENCE S. 00°00'00" E. A DISTANCE OF 179.97 FEET TO A POINT ON THE NORTH LINE OF EAST CARLSON STREET; THENCE N. 90°00'00" W. A DISTANCE OF 163.20 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 1.84 ACRES OR 80,114 SQUARE FEET MORE OR LESS; AND

A PARCEL OF LAND SITUATE IN A PORTION OF THE E $\frac{1}{2}$ W $\frac{1}{2}$ W $\frac{1}{2}$ NE $\frac{1}{4}$ SW $\frac{1}{4}$, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF BLOCK 1, GRAND PRE CIRCLE; THENCE N. 00°03' 00" E. A DISTANCE OF 658.90 FEET TO A POINT ON THE SOUTH LINE OF SMALLEY PARK, SPRING VALLEY ADDITION; THENCE S. 85°52'49" E. A DISTANCE OF 165.59 FEET TO THE SOUTHEAST CORNER OF SAID SMALLEY PARK AND THE NORTHWEST CORNER OF THE PARK PARCEL, REDMOND ADDITION; THENCE S. 00°02'00" W. ALONG THE WEST LINE OF SAID REDMOND ADDITION A DISTANCE OF 658.12 FEET TO A POINT; THENCE S. 89°51'00" W. A DISTANCE OF 165.78 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS; AND

A PARCEL OF LAND SITUATE IN A PORTION OF THE NW $\frac{1}{4}$ SE $\frac{1}{4}$ AND A PORTION OF PRAIRIE AVENUE, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF LOT 11, BLOCK 19, INDIAN HILLS, 3RD FILING ALSO BEING A POINT OF THE NORTH LINE OF PRAIRIE AVENUE; THENCE N. 89°57'49" E. ALONG THE SAID NORTH LINE OF PRAIRIE AVENUE A DISTANCE OF 593.17 FEET TO THE SOUTHEAST CORNER OF FLOHR SUBDIVISION; THENCE N. 00°02'15" W. A DISTANCE OF 110.99 FEET TO THE NORTHEAST CORNER OF SAID FLOHR; THENCE S. 89°57'45" W. ALONG THE NORTH LINE OF SAID FLOHR A DISTANCE OF 80.00 FEET TO A POINT; THENCE S. 00°02'15" E. A DISTANCE OF 23.00 FEET TO A POINT; THENCE S. 89°57'45" E. A DISTANCE OF 64.88 FEET TO A POINT ON THE EAST LINE OF MYLAR ADDITION; THENCE N. 00°02'15" W. ALONG THE SAID EAST LINE A DISTANCE OF 12.00 FEET TO THE NORTHEAST CORNER OF SAID MYLAR ADDITION; THENCE S. 89°57'45" W. ALONG THE NORTH LINE OF SAID MYLAR ADDITION A DISTANCE OF 75.00 FEET TO THE NORTHWEST CORNER OF SAID MYLAR ADDITION ALSO BEING A POINT ON THE EAST LINE OF MYLAR ADDITION, 2ND FILING; THENCE N. 00°02'15" W. ALONG THE EAST LINE OF SAID MYLAR ADDITION, 2ND FILING AND DRY CREEK SOUTH, "REFINEMENT A" A DISTANCE OF 150.00 FEET TO

THE NORTHEAST CORNER OF LOT 9, OF SAID DRY CREEK SOUTH, "REFINEMENT A" ALSO BEING A POINT ON THE SOUTH LINE OF MYLAR PARK; THENCE N. 89°57'45" E. ALONG THE SOUTH LINE OF SAID MYLAR PARK A DISTANCE OF 82.96 FEET TO A POINT; THENCE S. 49°30'15" E. ALONG THE SAID SOUTH LINE A DISTANCE OF 230.73 FEET TO A POINT; THENCE N. 89°57'12" E. ALONG THE SOUTH LINE OF SAID MYLAR PARK A DISTANCE OF 355.15 FEET TO THE NORTHWEST CORNER OF LOT 1, BLOCK 1, MYLAR PARK ADDITION, 2ND FILING; THENCE S. 00°16'46" W. ALONG THE WEST LINE OF SAID MYLAR PARK ADDITION, 2ND FILING A DISTANCE OF 100.11 FEET TO THE SOUTHWEST CORNER OF SAID ADDITION AND ALSO A POINT ON THE NORTH LINE OF SAID PRAIRIE AVENUE; THENCE S. 89°44'02" E. ALONG THE SOUTH LINE OF SAID ADDITION A DISTANCE OF 20.00 FEET TO THE SOUTHEAST CORNER OF SAID ADDITION; THENCE S. 00°16' 46" W. ALONG THE SOUTHERLY EXTENSION OF THE EAST LINE OF SAID MYLAR PARK ADDITION, 2ND FILING A DISTANCE OF 60.00 FEET TO A POINT ON THE SOUTH LINE OF SAID PRAIRIE AVENUE; THENCE S. 89°57'49" W. ALONG SAID SOUTH LINE A DISTANCE OF 1005.95 FEET TO THE INTERSECTION OF SOUTHERLY EXTENSION OF THE EAST LINE OF LOT 11, BLOCK 19, INDIAN HILLS, 3RD FILING AND THE SAID SOUTH LINE OF PRAIRIE AVENUE; THENCE N. 00°02'09" E. ALONG THE SAID SOUTHERLY EXTENSION LINE A DISTANCE OF 60.00 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 2.88 ACRES OR 125,222 SQUARE FEET MORE OR LESS; AND

PARCELS OF LAND SITUATE IN BLOCK 14, BLOCK 15, BLOCK 16, BLOCK 17, BLOCK 18, NORTH CHEYENNE, 2ND FILING AND BLOCK 1, NORTH CHEYENNE, 5TH FILING, AND PORTIONS OF PRAIRIE HILLS DRIVE, SIOUX DRIVE, A 16' ALLEY AND ALL OF CHEROKEE STREET, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: ALL OF LOTS 6-9, BLOCK 14, LOTS 6-9, BLOCK 15, LOTS 1-15, BLOCK 16, LOTS 6-8, BLOCK 17, LOTS 1-3, BLOCK 18, NORTH CHEYENNE, 2ND FILING AND LOTS 1-3, BLOCK 1, NORTH CHEYENNE, 5TH FILING, AND THOSE PORTIONS OF PRAIRIE HILLS DRIVE, SIOUX DRIVE, THAT PORTION OF A 16' ALLEY ADJACENT TO LOTS 6-9, BLOCK 15, CHEYENNE NORTH, 2ND FILING AND LOTS 1-3, BLOCK 1, CHEYENNE NORTH, 5TH FILING AND ALL OF CHEROKEE STREET WITHIN THE BOUNDS OF THIS ANNEXATION BOUNDARY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS; AND

A PARCEL OF LAND SITUATE IN THE S SE, SECTION 19, T. 14 N., R. 66 W., 12 SE, SECTION 19, T. 14 N., R. 66 W., 14, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING BEING MORE BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF NIMMO ADDITION AND CONTINUING ALONG THE WEST AND SOUTHERLY BOUNDARY OF SAID NIMMO ADDITION THROUGH THE NEXT 8 COURSES; THENCE S. 00°01' 00" E. ALONG THE WEST LINE A DISTANCE OF 124.00 FEET TO A POINT; THENCE S. 09°29'00" W. A DISTANCE OF 35.80 FEET TO A POINT; THENCE THROUGH A CURVE CONCAVED TO THE EAST HAVING A RADIUS OF 50.00 FEET A CENTRAL ANGLE OF 120°35'03 (ChB.-S. 09°29'01" W., ChL.-86.86') A DISTANCE OF 105.23 FEET TO A POINT; THENCE S. 50°48'30" E. A DISTANCE OF 540.52 FEET TO A POINT; THENCE S. 89°45'00" E. A DISTANCE OF 168.73 FEET TO A POINT; THENCE S. 58°33'30" E. A DISTANCE OF 153.53 FEET TO A POINT; THENCE N. 31°26'30" E. A DISTANCE OF 125.00 TO A POINT; THENCE S. 58°33'30" E. A DISTANCE OF 300.00 FEET TO A POINT; THENCE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 230.00 FEET A CENTRAL ANGLE OF 31°29'58 (ChB.-S. 74°18'30" W., ChL.-124.86') A DISTANCE OF 126.45 FEET TO A POINT; THENCE N. 89°56'30" E. A DISTANCE OF 126.93 FEET TO THE SOUTHEAST CORNER OF SAID NIMMO ADDITION ALSO BEING A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. 00°09'36" W. ALONG THE SAID WEST LINE OF A DISTANCE OF 195.90 FEET TO THE INTERSECTION OF THE SAID WEST LINE OF POWDERHOUSE ROAD AND THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE S. 44°41'41" W. ALONG THE SAID NORTH LINE A DISTANCE OF 260.75 FEET TO A POINT; THENCE CONTINUING ALONG THE SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 2181.83 FEET A CENTRAL ANGLE OF 02°29'58 (ChB.-N. 72°20'14" W., ChL.-95.17') A DISTANCE OF 95.18 FEET TO A POINT; THENCE S. 18°37'03" W. CONTINUING ALONG THE SAID NORTH LINE A DISTANCE OF 24.92 FEET TO A POINT; THENCE CONTINUING ALONG THE SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 2206.83 FEET A CENTRAL ANGLE OF 09°34'35 (ChB.-N. 66°37'13" W., ChL.-368.42') A DISTANCE OF 368.85 FEET TO THE SOUTHEAST CORNER OF LOT 1, BLOCK 3, CHEYENNE AIRPORT ADDITION; THENCE N. 00°12'55" E. ALONG THE WEST LINE OF SAID LOT 1 A DISTANCE OF 310.24 FEET TO THE NORTHEAST CORNER OF SAID LOT 1; THENCE N. 89°52'39" W. A DISTANCE OF 438.66 FEET TO THE NORTHWEST CORNER OF SAID LOT 1 ALSO BEING A POINT OF THE NORTH LINE OF SAID DELL RANGE BOULEVARD; THENCE N. 48°19'00" W. ALONG SAID NORTH LINE A DISTANCE OF 497.28 FEET TO THE

SOUTHERLY CORNER OF LOT 1, BLOCK 2, CHEYENNE AIRPORT ADDITION; THENCE S. 89°49'25" E. ALONG THE SOUTH LINE OF SAID LOT 1, BLOCK 2 A DISTANCE OF 150.78 FEET TO A POINT; THENCE S. 89°49'25" E. ALONG THE EAST LINE OF SAID LOT 1, BLOCK 2 A DISTANCE OF 330.33 FEET TO THE NORTHEAST CORNER OF SAID LOT 1, BLOCK 1 ALSO BEING A POINT ON THE SOUTH LINE OF PRAIRIE AVENUE; THENCE S. 89°38'36" E. ALONG SAID SOUTH LINE A DISTANCE OF 195.17 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 10.32 ACRES MORE OR LESS.

are hereby established as follows: All County A1 Agricultural and Rural Residential zoned areas are zoned AG Agriculture, all County LR Low Density Residential zoned areas are zoned LR Low Density Residential, all County MR Medium Density Residential zoned areas are zoned MR Medium Density Residential, all County CB Community Business zoned areas are zoned CB Community Business, and all County MU Mixed Use zoned areas are zoned MUR Mixed-use Residential.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle